

EDUCATION AGENT APPLICATION FORM - HIGH RISK PROFILE SAMPLE

⚠ COMPLIANCE WARNING: THIS APPLICATION CONTAINS MULTIPLE HIGH-RISK RED FLAGS (HIGH VISA REFUSALS, SUB-AGENCY DEPENDENCY, UNTRAINED STAFF, AND PAST LITIGATION)

1. COMPANY / AGENCY INFORMATION

Company Name	Apex Horizons Migration & Global Education Ltd.		
Trading Name	Apex Pathways Education	Overseas Registration No.	REG-2025-998102 (Pending Verification)
ABN (If Available)	N/A	ACN (If Available)	N/A
Type of Legal Entity	☒ Sole Trader ☐ Company ☐ Trust ☐ Partnership ☐ Other		
MARA / Agent ID / Other ID	None (Not Registered / MARA Expired 2023)	Year Founded / Years as Agent	Founded Nov 2025 (Less than 1 Year)
Sectors Promoted	☒ VET ☐ English ☐ Higher Education ☐ University		
Organizational Chart Attached	☐ Yes ☒ No (Not Available)	Business Profile Attached	☐ Yes ☒ No (Informal One-Pager Only)
Main Business Activities	Assisting local applicants with fast-track student visas, work permit guidance, job placement in Australia, and post-study permanent residency consultation.		
Professional Memberships & Networks	None currently held. Membership pending with local trade group.		

Directors & Key Employees

First Person (Sole Owner / Director)			
Agency/Business Name	Apex Pathways Education	Position Held	Sole Managing Director
Given Name	Vikram	Family Name	RATHORE
Phone / Mobile	+91 98765 00112 / +91 98765 00113	Email	apexpathways2025@gmail.com (Free Webmail Domain)
Qualifications & Experience	High School Diploma; 8 months working as freelance recruitment broker. No formal QEAC or EATC qualifications held.		
Second Person (Key Point of Contact)			
Agency/Business Name	Apex Pathways Education	Position Held	Freelance Sub-Agent Coordinator
Given Name	Rajesh	Family Name	KUMAR
Phone / Mobile	+91 98111 22334	Email	rajesh.broker@yahoo.com (Free Webmail Domain)

Qualifications & Experience	1 year freelance sales agent for multiple regional agencies; no formal education counseling certification.
Company Website & Address	Website: Under Construction (Social Media Page Only) Fax: N/A Main Address: Shop #14, 2nd Floor, Commercial Plaza, Outer Ring Road, Regional Sector, India.

2. COMPLIANCE & OPERATIONAL REQUIREMENTS

2.1 Completed Australian Education Agents Training Course (AEATC)?	☐ YES ☒ NO Number of staff completed: 0 Staff Members (Will complete if required)
2.2 Knowledge of ESOS Act (2000) & National Code (2018)?	☐ YES ☒ NO (Basic understanding only)
2.3 Regularly monitor Home Affairs (DHA) and Dept of Education websites?	☐ YES ☒ NO (Relies on third-party WhatsApp news groups)
2.4 Understand requirement to declare and avoid conflicts of interest in writing?	☐ YES ☒ NO
2.5 Understand international students must have primary purpose of full-time study?	☒ YES ☐ NO
2.6 Prepared to comply with City College advertising & application procedures?	☒ YES ☐ NO
2.7 Prepared to use official material supplied by City College?	☒ YES ☐ NO
2.8 Main responsibilities of Education Agents under National Code	Promote college courses, assist students with getting visa approval quickly, help students find part-time jobs upon arrival, and assist with family visa processing.
2.9 How compliance will be ensured	We inform students about college rules verbally and rely on external visa consultants to review documentation before lodgement.
2.10 Australian Representative Details	Company: None (No physical onshore Australian representative office). Contact: Relies on an informal contact in Sydney (unregistered migration helper).
International Recruitment Training Undertaken	None. Staff have not completed formal international education training or certification programs.
Past/Pending Disputes or Litigation?	☒ YES ☐ NO Details: Pending civil claim in 2025 regarding disputed commission splits and alleged misrepresentation of course entry fees with a former sub-agent partner.
Students Referred to Australia (Past 2 Years)	2024: 12 students 2025: 28 students Subject Areas: VET Automotive, Commercial Cookery, and General English programs.
Popular Courses & Promotion Method	Popular Courses: Short VET Certificate courses with maximum allowed work hours. Promotion Strategy: Local social media ads emphasizing "Fast-Track Australia Student Visas & Guaranteed Job Leads", local classified flyers, and freelance commission-based referral agents.
Student Visa Refusals	☒ YES ☐ NO Details & Reasons: Out of 28 applications submitted in 2025, 11 applications were refused by DHA (39.2% Visa Refusal Rate) due to failure to meet Genuine Student (GS) criteria, unverified financial proof, and insufficient ties to home country.
	Target per year: 60 - 100 students per year (High volume target). No. of Staff: 2 core staff + 15 freelance sub-agents.

Target Recruitment for City
College & Company Details

Other Destinations: UK, Cyprus, Malta.

Sub-Agent Usage: ☒ YES ☐ NO

Sub-Agent Network Name: Regional Freelance Education Broker Network
(Unregulated third-party sub-agents).

3. REFEREES (MINIMUM 3 - AT LEAST ONE AUSTRALIAN INSTITUTION)

Reference 1 (Australian Educational Institution - UNVERIFIED / DISCONTINUED)	
Contact Name & Position	Mr. Amit Patel Freelance Agent Manager
Organization	Global Education Institute (CRICOS Agreement Terminated late 2025)
Email & Phone	apatel_consultant@yahoo.com +61 400 000 111 (Mobile only)
Address	PO Box 102, Parramatta NSW 2150
Reference 2 (Local Sub-Agent / Non-Institutional)	
Contact Name & Position	Mr. Suresh Verma Director
Organization	Verma Overseas Recruitment Agency (Local Sub-agent partner)
Email & Phone	verma_agency@gmail.com +91 98222 33344
Address	Regional Plaza, Sector 4, Local City
Reference 3 (Non-Education Business Ref)	
Contact Name & Position	Mr. Ramesh Gupta Owner
Organization	Gupta Financial & Currency Exchange Services
Email & Phone	gupta_forex@hotmail.com +91 98333 44455
Address	Shop #5, Commercial Complex, Local City

4. ACKNOWLEDGEMENT AND DECLARATION

I acknowledge and confirm that I have accessed and reviewed the following websites and legislative documents:

☐ YES ☒ NO (Only reviewed basic website summary)

- The ESOS Act 2000 & National Code of Practice 2018
- Migration Agents Regulations 1998 & Agent Code of Ethics (ACE)
- City College Pty Ltd Website & Course Offerings
- Department of Home Affairs (DHA) & Department of Education Guidelines
- Standards for RTOs 2025

Agreed to Main Responsibilities under National Code 2018? ☐ YES ☒ NO

Understanding of PRIMARY Purpose of Student Visa & Minimum Study Hours:

"To allow students to enter Australia, study part-time while working up to allowed hours, and transition into permanent work visas."

Do you understand and agree NOT to guarantee permanent residency or migration status? ☐ YES ☒ NO (We inform clients about PR migration options)

Prepared to comply with City College advertising/marketing rules and only use approved materials? ☒ YES ☐ NO

Applicant's Full Name	Vikram RATHORE	Position / Role	Sole Owner / Director
Applicant's Signature	V. Rathore	Date	11 August 2026

RTO / CRICOS COMPLIANCE RISK ASSESSMENT SUMMARY FOR CITY COLLEGE ASSESSORS:

- **Red Flag 1: Very High Visa Refusal Rate (39.2% in 2025)** — Exceeds Home Affairs Risk Tier 3 thresholds.
- **Red Flag 2: Lack of Certified Staff** — 0 staff hold QEAC/EATC certifications; negative response to ESOS/National Code awareness.
- **Red Flag 3: Unregulated Sub-Agent Network** — Heavy reliance on 15 freelance brokers with no oversight mechanism.
- **Red Flag 4: Non-Compliant Marketing / PR Claims** — Promotes study visas primarily for work and PR pathways.
- **Red Flag 5: Pending Legal Dispute & Dubious Referees** — Active dispute with former sub-agent; no valid Australian CRICOS institution references.

RECOMMENDATION: REJECT APPLICATION IMMEDIATELY.